

Rakhi Sant v. State of U.P. — owner's consent no bar to grant or continuance of supply

High Court of Judicature at Allahabad · Division Bench · 26 March 2021 · WRIT-C No. 10343 of 2021 · **Writ allowed; restoration to be considered forthwith in accordance with law.**

HEADNOTE

Neither the Electricity Act, 2003 nor the U.P. Electricity Supply Code, 2005 contains any provision empowering a licensee to refuse to grant, or to discontinue, electricity supply solely because the owner's consent is not forthcoming or a dispute is pending. Supply of electricity is an essential service. Writ allowed; respondents directed to consider forthwith restoration in accordance with law.

FACTUAL SUMMARY

The petitioner, residing with her children at Flat No. A-95/E LIG, National Apartment, Shalimar Garden Extension-2, Ghaziabad, sought a mandamus to continue electricity supply after her husband, Madan Pal, with whom she had marital discord, complained to the licensee seeking disconnection. The authorities declined, citing the owner's withheld consent. She undertook to discharge any consumption liability. Counsel for the licensee stated that, if dues were cleared, there was no impediment to restoring supply forthwith.

REUSABLE CONSTRUCTIONS

1. Neither the Electricity Act, 2003 nor the U.P. Electricity Supply Code, 2005 contains any provision that permits a licensee to refuse to grant, or to discontinue, electricity supply solely because the owner's consent is not forthcoming or a dispute is pending. ¶ 4
2. Supply of electricity constitutes an essential service without which the survival of a person would be mere animal existence. ¶ 5

HOLDING-UNITS

INTERPLAY · UP-2005 / EA2003 (owner consent)

owner consent not a bar to grant or continuance of supply

HOLDING

A distribution licensee cannot refuse to grant, or discontinue, electricity supply only because the owner's consent is not forthcoming or a dispute is pending; neither the Electricity Act, 2003 nor the U.P. Electricity Supply Code, 2005 contains any such bar. The writ was allowed and the respondents were directed to consider the petitioner's request for forthwith restoration of supply in accordance with law. ¶ 4-5,8-9

FLAG Order cites EA 2003 and the 2005 Code generally; no numbered clause was identified.

PRINCIPLE TAGS

owner-consent-not-a-bar-to-supply The husband's withheld consent, and the pending marital dispute, could not justify refusal or discontinuance of supply at the petitioner's flat; the Code and the Act contain no such bar. ¶ 4

electricity-as-essential-service Restoration was approached on the footing that electricity is an essential service without which survival would be mere animal existence. Lead authorities: *Divya Sahni v. State of U.P.* [Writ-C No. 2008 of 2021]. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — EXISTENCE OR QUANTUM OF OUTSTANDING ELECTRICITY DUES

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Divya Sahni v. State of U.P.</i> Writ-C No. 2008 of 2021, decided 17.3.2021	Supply of electricity constitutes one of the essential services without which the survival of a person would be mere animal existence.		5	Referred

SCJ-2570 · Rakhi Sant v. State of U.P. — owner's consent no bar to grant or continuance of supply · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.